

Assignment 2: Adversarial Ethics and Fiduciary Duties

Please reference the instructions in the Assignment 2 description on LEARN as well as the rubric while completing this assignment.

Find an external source, whether that be a news article, fictional writing, movie, etc. where the themes of Adversarial Ethics or Fiduciary Duties are present. In a paragraph for each question below, answer the following questions.

Be sure that you provide a clear and thorough explanation of your source. Additionally, ensure that your 2nd and 3rd paragraphs have strong support from course material (e.g., individual self-interest; the "if it's not illegal it's ok" attitude). Be sure to properly reference your external source(s) within your submission, using any style of your choice.

Your assignment should be between 400 – 600 words.

1. Provide a citation for your source, with enough detail so the reader can easily identify it.

Kosawa, R. (Writer), Ishikawa, J. (Director), & Joho, H. (Director). (2013, December 18). Protect the World-Class Natural Heritage!! The Surprising Truth Behind the Residents' Lawsuit (Season 2, Episode 8) [TV series episode]. In H. Inada, J. Yamazaki (Executive Producer), *Legal High*. Kyodo Television; Fuji Television.

2. Describe what is happening in your external source in complete detail.

Legal High S2 Ep 8 centers on an inheritance dispute where a widow seeks to block her late husband's illegitimate child from claiming part of the estate. Lawyer Komikado Kensuke aggressively exploits legal loopholes and procedural tactics to undermine the child's claim. His junior lawyer, Mayuzumi, challenges this approach, arguing that while legally permissible, it is morally questionable to deny a child their rightful inheritance. The episode explores adversarial ethics, raising key questions: Should lawyers prioritize winning for their client at all costs? Where is the line between effective advocacy and moral responsibility within the adversarial legal system?

3. Examine the ethical dilemma involving adversarial ethics or the consequences of corporate profit-seeking.

In Legal High Season 2 Episode 8, Komikado employs aggressive legal tactics: exploiting procedural loopholes, questioning the child's legal standing, and manipulating public perception. While these tactics remain legally permissible, they raise significant ethical concerns. His junior lawyer, Mayuzumi, challenges this approach, arguing that denying the child's rightful inheritance through purely procedural advantage contradicts basic notions of fairness. The episode vividly illustrates the core tension in adversarial ethics: Should lawyers zealously advocate for their client even when doing so leads to unjust outcomes?

Specifically, Komikado's stance reflects an "if it's not illegal, it's okay" attitude — a concept we discussed in class that often underpins adversarial ethics. His actions also stem from individual self-interest: prioritizing a legal "win" to enhance his professional reputation. In contrast, Mayuzumi's objections reflect a broader ethical responsibility to justice and to the integrity of the legal system. This tension directly engages with course concepts about the ethical boundaries of adversarial advocacy.

4. Do you think your source's actions or attitudes are justifiable? Why or why not?

I believe that both Mayuzumi's and Komikado's actions are justifiable, though they represent very different ethical perspectives.

Starting with Mayuzumi, her objections to Komikado's tactics are rooted in a genuine concern for justice and fairness. She represents the view that the legal system should not be used merely to serve individual self-interest, but should also uphold moral values and protect vulnerable parties. Without lawyers like Mayuzumi, the legal system could easily become dominated by an "if it's not illegal, it's okay" mentality, where procedural victories are prioritized over substantive justice. Her stance is essential because it reminds us that the spirit of the law matters as much as the letter of the law.

At the same time, Komikado's approach is also justifiable within the adversarial system. His actions highlight the importance of vigorous advocacy and ensuring that all legal arguments are explored, particularly in cases that are not black-and-white. Additionally, Komikado's focus on efficiency reflects the reality that the legal system cannot expect every lawyer to act as an impartial truth-seeker in every case — such expectations would make the system unworkable. In an adversarial system built on self-interest and competition, his role remains valid.

5. Explain two recommendations you would provide the stakeholders in your source. Stakeholders are those who are/were impacted by the ethical dilemma in your source.

For the lawyers (Komikado and Mayuzumi) and the broader legal community, I would recommend adopting a more balanced approach between adversarial advocacy and ethical responsibility. While zealous representation is important, lawyers should also consider the broader social impact of their tactics, especially in sensitive cases like family disputes. Creating clearer ethical guidelines or professional standards that discourage purely exploitative legal strategies would help align advocacy with the spirit of justice.

Second, for policymakers and lawmakers, I would recommend ongoing review and reform of legal loopholes exposed through cases like this one. As Komikado's tactics show, the legal system can sometimes be manipulated in ways that undermine fairness. Monitoring how adversarial strategies are used in practice can inform better lawmaking, closing gaps that might allow unjust outcomes. This reflects the idea that allowing room for legal debate — even controversial tactics — helps the system evolve and better serve society over time.